

		moving papers. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Plaintiff's arguments presented in the motion. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) Given the above, the Court finds that the requested terminating sanctions are appropriate under the circumstances. The Motion is GRANTED. Defendants' answer (ROA 19) is DEEMED STRICKEN. Plaintiff may seek entry of default forthwith and may prepare an appropriate default judgment prove-up package. <i>Plaintiff to give notice.</i>
107	Parker vs. Le, 24-01447835	<u>Motion to Consolidate</u> Defendants Nhi Xuan Le and Linda Nguyen (together, "Defendants") move to consolidate the two related matters, Parker v. Le, et al., Case No. 2024-01447835 (the "7835 Action"), and Parker v. Le, et al., Case No. 2025-01463080 (the "3080 Action"). For the following reasons, Defendants' motion is GRANTED. Defendants did not strictly comply with rule 3.350 because the notice of motion was not filed in the related 3080 Action, and the motion does not contain both captions. Although this constitutes a procedural defect, Plaintiff is the only party to both actions other than the moving parties, and Plaintiff filed an opposition (albeit, belatedly), in which she does not raise any objections to the procedural defects. Thus, no resulting prejudice has been

identified. The Court therefore addresses the merits notwithstanding the procedural defect.

The two actions concern disputes over the same two adjacent residential properties, and the parties are identical in both cases, except that in the 3080 Action, Plaintiff litigates in her capacity as "Successor Trustee and Sole Beneficiary of the Claudia Anne Parker Revocable Trust." In the 7835 Action, Plaintiff appears in her individual capacity, although she alleges that the property is in a trust, and has filed a motion for leave to amend which, in part, seeks to change Plaintiff's capacity to trustee. Both cases involve claims for negligence, private nuisance and property damage. However, the 3080 Action also includes allegations related to easement rights.

Plaintiff contends that the cases do not overlap, and therefore consolidation would not serve economy and convenience. She contends that the 3080 Action concerns issues with the front portion of the properties, while the 7835 Action concerns issues with the rear portion of the properties.

The Court finds that consolidation would conserve judicial resources, and reduce the risk of inconsistent rulings. Although the issues raised in the two cases are not identical, because they involve the same parties, same property, and similar causes of action, complete consolidation will streamline the litigation.

Defendants raise concern that Plaintiff is not able to prosecute these actions in pro per, as she apparently intends to pursue both actions in her capacity as trustee. Defendants urge the Court to set an OSC re: Dismissal regarding the matter. However, this issue is beyond the scope of a motion for consolidation. Further, citing *Aulisio v. Bancroft*, Defendants contend that a person who is "only the trustee and sole beneficiary of a revocable trust settled by someone else," and not the settlor, "could not purport to litigate trust matters in propria persona because the interests at stake in protecting the trust corpus would belong to the settlor." (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1525.) Defendants have not provided any evidence that Plaintiff is not the settlor of the trust.

		Accordingly, the motion is GRANTED. The actions are consolidated for all purposes, with Parker v. Le, et al., Case No. 2024-01447835, designated as the lead case. <u>Motion for Leave to File Second Amended Complaint</u> Plaintiff Ana Christina Parker ("Plaintiff") seeks leave to file a Second Amended Complaint. However, on the deadline for Plaintiff's reply brief, Plaintiff instead filed a Notice of Lodging and Supplemental Declaration which purports to submit a revised proposed Second Amended Complaint. The revised proposed Second Amended Complaint was not attached to the supplemental declaration or notice of lodging. Further, the notice of lodging indicates that the revised proposed SAC "add[s] limited factual allegations and related requested abatement relief based on newly discovered information concerning wall-height limitations, wall-reconstruction requirements, and the feasibility of abating ongoing noise, privacy, wall, an access-related interference." (ROA 70 ¶ 3.) The Court cannot assess the merits of the motion without a copy of the proposed pleading. Further, CRC 3.1324 requires Plaintiff to provide a declaration regarding the proposed changes, and to include a redline of the proposed pleading, none of which has been done in connection with the revised proposed SAC. Finally, submitting the revised proposed SAC after Defendants have already filed their opposition unfairly deprives Defendants of a fair opportunity to respond to the proposed pleading. For all of these reasons, the motion is DENIED without prejudice. <i>Defendants to give notice of both orders.</i>
108	The Standard Fire Insurance Company vs. Milton Roy Company, Hartell Division, 25-01473457	Plaintiff The Standard Fire Insurance Company ("Plaintiff") moves to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition. Plaintiff also asks for monetary sanctions in the amount of \$561.65 against Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., for the reasonable costs and fees associated with having to bring this motion. The Motion is made pursuant to Code of Civil Procedure section 2025.450, et seq. and 2023.030(a).